

EXHIBIT 46

From:
Sent:
To:
Cc:
Subject:

Gardner, Eamonn
Friday, August 21, 2026 12:47 AM
Smith, Kyle; Team-GlobalFoundries-ITC-CGSHOnly
z/Tower_ITC
RE: 337-TA-1500 - Follow-Up from Meet and Confer re Claim Construction

Kyle,

It is unclear to us what you mean when you say “Respondents have provided no basis for Respondents’ proposed constructions or for their indefiniteness assertions.” During the call, we specifically walked you through each of the terms and explained our positions, including providing the rationale behind our indefiniteness arguments, and discussing specific figures and specification cites for some of the issues where appropriate. Indeed, in my email below, we followed up with one of the specific figures we discussed and the specific questions we raised on the call in relation to that figure.

During the meet-and-confer, the respective members of your team told us you would get back to us with a response to our questions so that we could move the discussion forward. We are therefore confused by your refusal to provide any response. For example, for at least the term “the drift isolation region is disposed under the gate” your team indicated that you thought you could agree to the construction, but now appear unwilling to engage in any way.

For the “outermost edges ... vertically coincident to each other” term, we can agree to the construe as “outer edges ... vertically aligned with each other” and remove that issue from the disputed issues.

Regards,

Eamonn

Eamonn Gardner
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From: Smith, Kyle <kysmith@cgsh.com>
Sent: Thursday, August 20, 2026 3:32 PM
To: Gardner, Eamonn <egardner@cooley.com>; Team-GlobalFoundries-ITC-CGSHOnly <team-globalfoundries-itc-cgshonly@cgsh.com>
Cc: z/Tower_ITC <TowerITC@cooley.com>
Subject: RE: 337-TA-1500 - Follow-Up from Meet and Confer re Claim Construction

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Eamonn,

As set forth during the parties’ meet and confer and in my email below, apart from “outermost edges ... vertically coincident to each other,” our position remains that each term should be given its plain and ordinary meaning. Respondents have provided no basis for Respondents’ proposed constructions or for their indefiniteness assertions. By way of example only, Respondents have not identified any lexicography, disclaimer, or other intrinsic support that would justify rewriting or limiting the claims as proposed. If Respondents have intrinsic support they have not yet provided, please send it and we will consider whether it narrows the disputes. Otherwise, we can address any outstanding dispute in the briefing before the Court.

Separately, please confirm by 3 PM PT that agreeing to Tower’s proposed construction of “outermost edges ... vertically coincident to each other” as “outer edges ... vertically aligned with each other” would resolve the dispute as to that term and that Tower will withdraw its indefiniteness assertion as to that term.

Thanks,
Kyle

Kyle Smith | Counsel
Cleary Gottlieb Steen & Hamilton LLP
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From: Gardner, Eamonn <egardner@cooley.com>
Sent: Thursday, August 20, 2026 5:06 PM
To: Smith, Kyle <kysmith@cgsh.com>; Team-GlobalFoundries-ITC-CGSHOnly <team-globalfoundries-itc-cgshonly@cgsh.com>
Cc: z/Tower_ITC <TowerITC@cooley.com>
Subject: RE: 337-TA-1500 - Follow-Up from Meet and Confer re Claim Construction

Thanks, Kyle.

When can we expect responses to the issues we discussed yesterday as summarized in my email below?

Eamonn

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From: Smith, Kyle <kysmith@cgsh.com>
Sent: Thursday, August 20, 2026 3:02 PM
To: Gardner, Eamonn <egardner@cooley.com>; Team-GlobalFoundries-ITC-CGSHOnly <team-globalfoundries-itc-cgshonly@cgsh.com>
Cc: z/Tower_ITC <TowerITC@cooley.com>
Subject: RE: 337-TA-1500 - Follow-Up from Meet and Confer re Claim Construction

Eamonn,

We are amenable to adopting Tower’s proposed construction for “outermost edges ... vertically coincident to each other” as “outer edges ... vertically aligned with each other” if that resolves the dispute on that term and Tower withdraws its indefiniteness assertion. Please confirm.

As to the remaining terms, our position remains that they should be given their plain and ordinary meaning. Respondents have not identified any lexicography, disclaimer, or any other basis for rewriting and/or limiting the claims as Respondents propose. To the extent Respondents have any intrinsic support for its positions, please provide them so that we can consider it and see if the disputes can be narrowed. Regarding indefiniteness, the claim terms below, when read in light of the intrinsic record, informs POSITAs of the claim scope with reasonable certainty, and Respondents have identified nothing to the contrary.

Thanks,
Kyle

Kyle Smith | Counsel
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From: Gardner, Eamonn <egardner@cooley.com>
Sent: Thursday, August 20, 2026 12:02 AM
To: Team-GlobalFoundries-ITC-CGSHOnly <team-globalfoundries-itc-cgshonly@cgsh.com>
Cc: z/Tower_ITC <TowerITC@cooley.com>
Subject: RE: 337-TA-1500 - Follow-Up from Meet and Confer re Claim Construction

Counsel,

Thanks for today’s meet-and-confer. As discussed, in order to help focus the issues for the Court, Respondents request responses on the following issues discussed during the meet-and-confer.

In addition, please let us know your availability to meet-and-confer tomorrow so that we can further refine any remaining disputed issues for the Court.

- “layer” / “first liner layer” / “refractory metal layer”
 - Please clarify whether Complainant’s position is that a single coating of material can be considered two different layers
 - Please also identify any issues Complainant has with Respondents’ alternative construction
- “intermix region”
 - Please let us know if Complainant has any position on how much intermixing is required for a region to be considered an “intermix region”
- “outermost edges...vertically coincident to each other”
 - Please identify any issues Complainant has with Respondents’ alternative construction
- “from a nickel silicide surface at a silicon interface to an opposite surface of the nickel silicide”
 - Please let us know if Complainant has any position on how to identify/define the “silicon interface” and/or the “nickel silicide surface”
- “adjacent to”
 - Please let us know if Complainant has any position on when two structures that are “displaced from” each other are still “adjacent to” each other
- “the drift isolation region is disposed under the gate”
 - Please identify any issues Complainant has with Respondents’ proposed construction
- “the channel having a channel length that is controlled by ion implantation”
 - Please let us know whether Complainant agrees that Respondents’ proposed construction is included within the scope of the claim term
 - Please let us know whether Complainant believes that Respondents’ proposed construction excludes something that would be within the scope of the claim term
- “edge of the gate”
 - Please let us know whether Complainant agrees that the right edge of the gate below is defined by the edge of the gate electrode over the gate dielectric (black arrow) as opposed to the far-right portion of the gate dielectric (blue arrow)
 - Please let us know whether Complainant agrees that the left edge of the gate below is defined by the edge of the gate electrode over the gate dielectric (green arrow) as opposed to the far-left portion of the gate dielectric (red arrow)

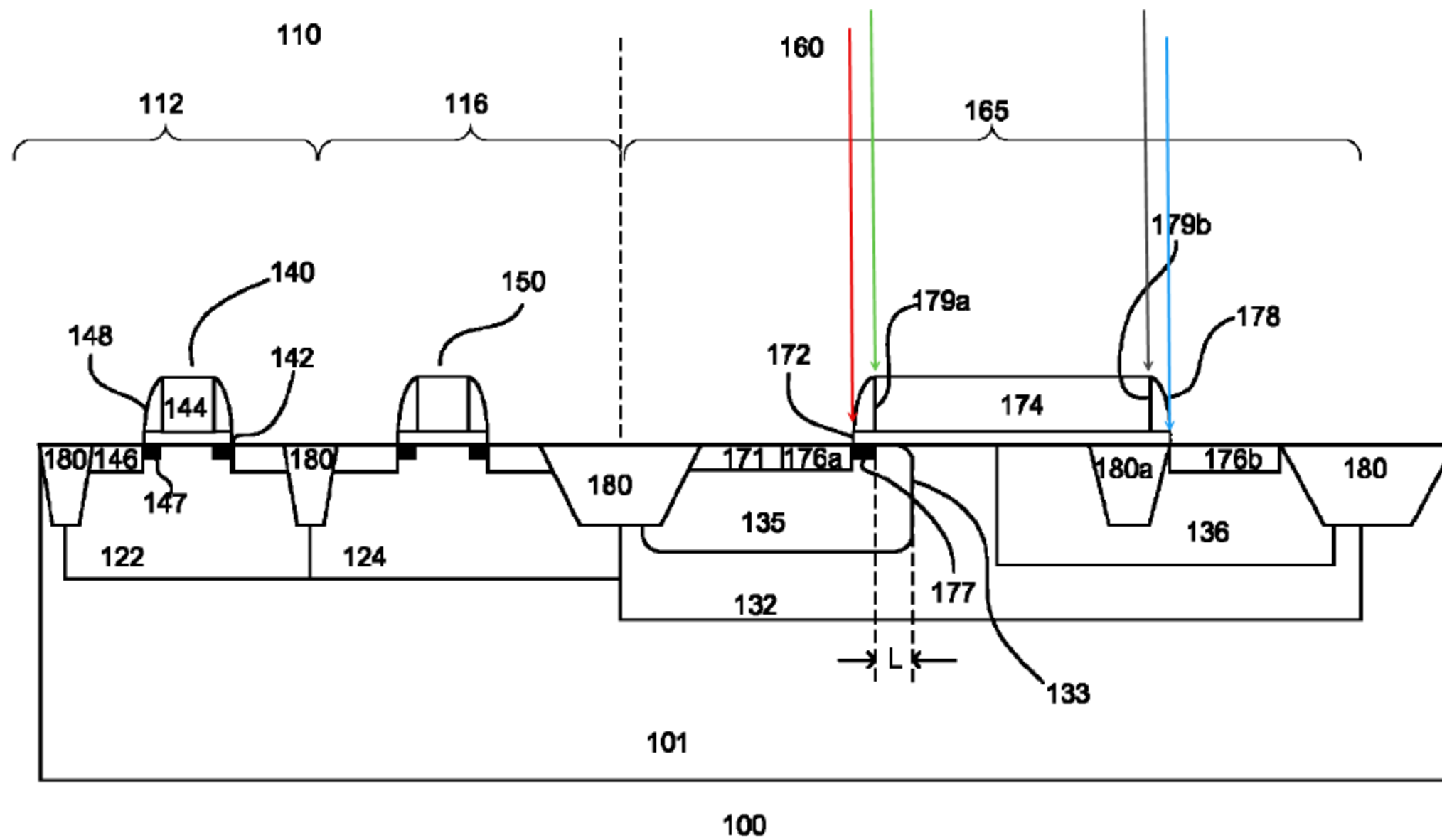


Fig. 1

Thanks,

Eamonn

Eamonn Gardner

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-----Original Appointment-----
From: Gardner, Eamonn
Sent: Wednesday, August 19, 2026 11:25 AM
To: Gardner, Eamonn; z/Tower_ITC; Team-GlobalFoundries-ITC-CGSHOnly
Cc: Whitt, Samuel K
Subject: 337-TA-1500 - Meet and Confer re Claim Construction
When: Wednesday, August 19, 2026 12:30 PM-1:30 PM (UTC-07:00) Mountain Time (US & Canada).
Where: <https://cooley.zoom.us/j/92673620135?from=addon>

Setting the invite for one hour, but we can use as little time as is needed or as much time as is available.



Eamonn Gardner is inviting you to a scheduled Zoom meeting.

[Join Zoom Meeting](#)

iPhone one-tap: (US Toll): +17193594580,92673620135# or
+12532050468,92673620135#
Meeting URL: <https://cooley.zoom.us/j/92673620135?from=addon>

Join by Telephone

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 - +1 669 900 6833 (US Toll)
 - +1 312 626 6799 (US Toll)
 - +1 360 209 5623 (US Toll)
 - +1 386 347 5053 (US Toll)
 - +1 507 473 4847 (US Toll)
 - +1 564 217 2000 (US Toll)
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 - +1 689 278 1000 (US Toll)
 - +1 301 715 8592 (US Toll)
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+1 309 205 3325 (US Toll)
833 928 4608 (US Toll Free)
833 928 4609 (US Toll Free)
833 928 4610 (US Toll Free)
877 853 5257 (US Toll Free)
888 475 4499 (US Toll Free)
833 548 0276 (US Toll Free)
833 548 0282 (US Toll Free)

Meeting ID: 926 7362 0135

[International numbers](#)

Join from an H.323/SIP room system

H.323: 144.195.19.161 (US West) or 206.247.11.121 (US East)

Meeting ID: 926 7362 0135

SIP: 92673620135@zoomcrc.com

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